Minutes of the General Government Committee Meeting Held in the River Plate Room, Ajax Town Hall At 1:00 p.m. on April 8, 2019

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Present:	Chair - Councillor	R. Tyler Morin, Chair
	Regional Councillors	M. Crawford
		S. Lee
		J. Dies
	Councillors	A. Khan
		L. Bower
	Mayor	S. Collier

1. Call to Order

Chair Tyler Morin called the meeting to order at 1:00 p.m.

2. Disclosure of Pecuniary Interest

There were no disclosures of pecuniary interests.

3. Adoption of Minutes

3.1 Regular Meeting

Moved by: S. Lee

That the Minutes of the regular meeting of the General Government Committee held on March 18, 2019 be adopted.

CARRIED

3.2 Closed Session

Moved by: L. Bower

That the Minutes of the Closed Session of the General Government Committee held on March 18, 2019 be adopted.

CARRIED

4. Consent Agenda

Members separated items 4.1, 4.6, and 4.7 for discussion.

Moved by: M. Crawford

That items 4.2, 4.3, 4.4, 4.5 and 4.8 of the consent agenda be adopted.

CARRIED

4.1 Contract Award – T19012 Streetlight Maintenance

Committee members asked questions regarding the bid tendering process and cost overages. Sheila Strain, Director of Finance/Treasurer, reviewed the Town's tendering process and discussed cost overages related to unit prices.

Moved by: S. Lee

1. That Council award the contract for Streetlight Maintenance, to Langley Utilities Contracting Ltd. in the estimated amount of $355,901.60 (inclusive of all taxes), for a period of one year.
2. That Council authorize Staff to renew the contract for an additional two, one year periods, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $766,078.20 (inclusive of all taxes).

CARRIED

4.2 Final Report on Over-Expenditure – Sidewalk and Multi-use Trail Construction 2016

Moved by: M. Crawford

That the report on the net over-expenditure of $29,674.14 (net of HST rebate) on the Sidewalk and Multi-use Trail Construction project, Capital Account No. 975811, previously awarded to Aloia Bros Contractors Ltd., be received for information.

CARRIED

4.3 Contract Award – Concrete Sidewalk and Curb Repairs

Moved by: M. Crawford

That Council award the contract for Concrete Sidewalk and Curb Repairs to Serve Construction Ltd in the amount of $508,358.75 (inclusive of all taxes).

CARRIED

4.4 Winter Control Services – Contract Extension

Moved by: M. Crawford

1. That Council award the contract extension for Winter Control Services, to Trisan Construction in the estimated amount of $393,012.10 (inclusive of all taxes), for a period of one year.

2. That Council award the contract for an additional one year period, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $398,907.28 (inclusive of all taxes).

CARRIED

4.5 Final Report on Over-Expenditure – Local Road Resurfacing 2017

Moved by: M. Crawford

That the final report on the net over-expenditure of $88,559.33 (net of HST rebate) on the Local Road Resurfacing 2017, Capital Account No. 985211, previously awarded to Four Seasons Development Inc. be received for information.

CARRIED

4.6 Municipal Parking Lot and Walkway Snow Clearing – Contract Extension

Committee Members asked questions regarding salt application and snow management on Town property. Catherine Bridgeman, Acting Director of Operations & Environmental Services, and Dave Meredith, Acting Director of Planning & Development Services, responded to questions from Committee Members and reviewed the Town's salt application and snow management practices.

Moved by: J. Dies

1. That Council award the contract extension for Municipal Parking Lot and Walkway Snow Clearing, to Melfer Construction Inc. in the estimated amount of $146,818.64 (inclusive of all taxes), for a period of one year.

2. That Council authorize Staff to renew the contract for an additional one year period, pending an analysis and satisfactory performance review at the anniversary date of the contract, in the estimated amount of $149,755.01 (inclusive of all taxes).

CARRIED

4.7 Westglen Property: Updating of Heritage Designation By-laws and Heritage Conservation Easement Agreement

Committee Members asked questions regarding the proposed changes to the heritage designation for the Westglen property. Michael Sawchuck, Senior Planner, responded to questions from Committee Members and reviewed the proposed changes to the heritage designation.

Moved by: S. Collier

That the legal conservation tools used to protect the cultural heritage value of the Westglen Property be revised by:

1) Introducing a new heritage designation by-law that reflects the revised boundaries of the heritage lot and repeals the two existing designation by-laws; and

2) Amending the existing heritage conservation easement agreement to reflect the revised boundaries of the heritage lot and reference the new designation by-law.

CARRIED

4.8 Assumption of Subdivision
18T-85039 Hermitage Farm Phase One
Block 134, Parts 1 and 2

Moved by: M. Crawford

1 That the works and services within the following Plan of Subdivision be assumed by the Town:

a) (18T-85039) – Hermitage Farm Phase 1 Subd., Block 134 Parts 1 and 2
Owner: Runnymede Development Corporation Limited
Agreement Date: May 2, 1994
Registered Plan: 40M-1464 (Block 134 Parts 1 and 2, 40R-15007)
Refer to Appendix "A"

2 That the corresponding Assumption By-law be prepared for an upcoming Council meeting.

CARRIED

5. Discussion

None

6. Presentations

6.1 Duffins Creek Water Pollution Control Plant Outfall Environmental Assessment & Phosphorus Reduction Action Plan Update

Michael Sawchuck, Senior Planner, provided a presentation reviewing the contents of the written report. M. Sawchuck discussed the background of the file, algae impacts on the waterfront, causes of the problem, Duffins Creek Water Pollution Control Plant (WPCP) operations, the WPCP expansion plan, results of the Phosphorus Reduction Action Plan (PRAP) study, effluent levels based on different treatment methods, soluble reactive phosphorus (SRP) and total phosphorus (TP) in the WPCP's effluent, effectiveness of tertiary treatment, and next steps.

Committee Members asked questions regarding capital and operating costs for different treatment options, current output of the Duffins Creek WPCP, results of the PRAP report, the position of Durham Regional Council on the matter, and next steps in the decision process. M. Sawchuck and Stev Andis, Supervisor of Planning Policy & Research, responded to questions from Committee Members and discussed the various impacts of phosphorus effluent from the WPCP, comparative capital and operating costs for different treatment options, and the research and conclusions of the Region of Durham. Rachael Wraith, Acting Manager of Public and Strategic Affairs, discussed the Town's communication strategy.

Members of Pickering Ajax Citizens Together to Protect Our Water (PACT POW) in attendance indicated that they wished to address the Committee in regards to the matter.

Motion to Suspend the Rules of Procedure

Moved by: J. Dies

That the rules of procedure be suspended in order to allow a delegation from PACT POW regarding the Duffins Creek Water Pollution Control Plant Outfall Environmental Assessment & Phosphorus Reduction Action Plan Update.

CARRIED on 2/3rds

David Steele, Co-Chair, Paul Wealleans, Co-Chair, and Mark Matsumoto, member, PACT POW, discussed the history of the PRAP study, the science completed by the Town, and the benefits of tertiary treatment. Mr. Steele noted that PACT POW had met recently with the Minister of the Environment, Conservation and Parks to discuss the matter. Paul Wealleans addressed the committee and discussed PACT POW's involvement in the 2018 municipal elections.

Mayor Collier introduced a motion regarding the development of a marketing campaign for the PRAP project. Members discussed the motion and the past involvement of PACT POW with the Town. Shane Baker, Chief Administrative Officer, noted that staff would address the matter if necessary at an upcoming meeting of Council.

Motion

Moved by: S. Collier

That staff be directed to prepare and launch a full comprehensive marketing campaign to identify the areas where the Region's Optimization Plan do meet the Minister's Order requirements and the effects of the scientifically proven method of the tertiary treatment that has been used successfully on Lake Simcoe and Lake Erie; and further that this be a Town of Ajax campaign and not in connection with PACTPOW or any other outside agency or lobby group, and this exclusion does not include neighbouring municipalities.

MOTION WITHDRAWN

Moved by: S. Lee

That this report, titled *Duffin Creek Water Pollution Control Plant Outfall Class Environmental Assessment and Phosphorus Reduction Action Plan Update*, dated April 8, 2019 be received for information.

CARRIED

Closed Session (2:14 p.m.)

7. Authority to Hold a Closed Session

Moved by: S. Collier

That the Committee convene to a Closed Session pursuant to Section 239 (2) (c, e) of the *Municipal Act, 2001,* as amended, to discuss a proposed or pending acquisition or disposition of land by the municipality or local board and matters pertaining to a litigation or potential litigation, including matters before administrative tribunals, affecting the municipality or local board

CARRIED

7.1 **South Station Street Property Disposal to NexxGen Environmental**

7.2 **Ajax Auto Wreckers Update**

Open Meeting

Ratify Actions Taken In Closed Session

Moved by: A. Khan

That all directions approved in the Closed Session be ratified.

CARRIED

8. Adjournment (3:10 p.m.)

Moved by: A. Khan

That the April 8, 2019 meeting of the General Government Committee be adjourned.

CARRIED

Ahmed Khan

Chair

Acting Clerk